DEPARTMENT OF HEALTH AND HUMAN SERVICES

HHS REASONABLE ACCOMMODATION DESIGNATION OF REPRESENTATIVE FORM

Agency Case File No.:

Requester Name:

Pursuant to Title 29 Code of Federal Regulations (C.F.R.) Section 1630 and the Equal Employment Opportunity Commission (EEOC) Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the American Disabilities Act, The employer should be receptive to any relevant information or requests it receives from a third party acting on the individual's behalf because the reasonable accommodation process presumes open communication in order to help the employer make an informed decision.

A request for reasonable accommodation is the first step in an informal, interactive process between the individual and the employer. In some instances, before addressing the merits of the accommodation request, the employer needs to determine if the individual's medical condition meets the ADA definition of "disability," a prerequisite for the individual to be entitled to a reasonable accommodation.

Please complete the information below and provide this form to the Reasonable Accommodation Program.

My Representative is:

☐ Family member ☐ Medical Provider ☐ Attorney ☐ Other (please specify)

REPRESENTATIVE INFORMATION

Last Name	First Name	Middle Initial

Address	Telephone Number	Email

I understand that:

Since I have designated a representative, unless I state otherwise in writing, all official correspondence related to this reasonable accommodation request, including but not limited to personal medical information, shall be shared with the designated representative. Although I have designated a representative, I am at all times responsible for proceeding with the reasonable accommodation request. Additionally, if I choose to revoke designation of representative or make a change in representation, I must immediately notify in writing the Reasonable Accommodation Program.

Requester/Employee Signature	Date *(mm/dd/yyyy)*

PRIVACY ACT STATEMENT

Authority
Health and Human Services (HHS) is authorized to collect the requested information under the Rehabilitation Act of 1973, 29 U.S.C. 701 and the Americans with Disabilities Act (ADA), 42 U.S.C. 12101. Additional authorities listed in the applicable System of Records Notices (SORNs) include: 42 U.S.C. 2000e-16, 12101 through 12117, and 12201 through 12213; 5 U.S.C. 1302, 3301, 3302; and Executive Order (E.O.) 13164, Establishing Procedures to Facilitate the Provision of Reasonable Accommodation, 65 FR 46565 (July 26, 2000).

Purpose
HHS's Reasonable Accommodation Program staff will use submitted information to track and monitor reasonable accommodation requests submitted by HHS employees and job applicants or their representatives.

Routine Uses
While the information requested is intended to be used primarily for internal HHS purposes, in certain circumstances it may be necessary to disclose information to: a contractor or agent engaged by HHS to support accommodation request handling or other relevant agency functions; a requesting labor organization when relevant to personnel representation; the Department of Justice (DOJ) or a court as necessary and relevant to litigation or administrative proceedings; an adjudicative body (e.g., the Merit System Protection Board), arbitrators, and hearing examiners to the extent necessary to carry out their authorized duties; or, to a person authorized to act on your behalf. A complete list of the routine uses can be found in the SORNs associated with this collection of information, Accommodation Records About HHS Civilian Employees,

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Contractors and Visitors, 09-90-2103, 86 Fed. Reg. 68262 (December 1, 2021); OPM GOVT-5 Recruiting, Examining, and Placement Records, 79 FR 16834 (Mar. 26, 2014) (as modified by 80 FR 74815 (Nov. 30, 2015); and 86 FR 68291 (Dec. 1, 2021)).

Consequences of Failure to Provide Information

Providing the requested information is voluntary; there is no civil fine or criminal penalty if you decline to provide information. However, the information requested is necessary for tracking, monitoring and responding to applications for reasonable accommodations. Failure to provide information may prevent RAC from processing a reasonable accommodation request.